

The Plaintiff asserts that at the time the debt was incurred, Jesscia Mariscal and Jeremy Mariscal were married and their earnings constitute community property under Code of Civil Procedure section 706.109. (Plaintiff's motion, p. 2). The plaintiff asserts that the judgment debtor is still married to his spouse Jessica Marsical, who is an employee at Kaiser Permanente. (*Id.*, at p. 3; Declaration of Holmes).

Plaintiff's counsel Leslie Holmes submitted a declaration attesting that the above belief is based on a "...a variety of sources, including but not limited to social medial account activity, recorded Interspousal Transfer Deed, and the like." (Declaration of Holmes, p. 5). Plaintiff's counsel also attached screen shots of Jesscia Mariscal's social media page "...facebook page indicating that she is married to Jeremy Mariscal along with an Interspousal Transfer Deed that was recorded in Santa Clara County." (*Id.*).

The Court notes that plaintiff's counsel's declaration was "[e]xecuted this 15th date of August, 2024. . ." which was a year before the motion as filed and prior to the default judgment authorized on March 10, 2025. This may be a scrivener's error as to the year. Even if the year reflected was a mistake and was executed in 2025, the Declaration is ten months old. The Declaration does not set forth efforts in attempting to resolve the debt with the judgment debtor or show collection efforts. The Facebook snap showing the date of February 16, 2021 is not authenticated and does not currently reflect the judgment debtor and Jesscia Marsical's current martial status. The interspousal transfer deed is dated February 25, 2020 and does not provide a current marital status update.

Plaintiff counsel does not provide any information regarding attempts to recover the judgment from the judgment debtor Jeremy Mariscal or Circle Pi Motors or efforts to resolve this judgment through settlement negotiations or compromise. There is no information as to why the plaintiff has been unable to satisfy its judgment with Jeremy Mariscal or Circle Pi Motors by recording liens, bank levy or so forth before garnishing the wages of his spouse Jessica Mariscal.

While California law provides that wages of a spouse during marriage is generally community property, and a judgment creditor may move for a court order withholding against a judgment debtor's spouse, the evidence proving the state of the marriage currently is deficient. Plaintiff must submit a public record evidence as to the current marital relationship as well as set forth evidence on attempts to collect or resolve the judgment with the judgment debtor Jeremy Mariscal or Circle Pi Motors.

IV. CONCLUSION

Based on the foregoing, the motion is DENIED without prejudice.

Calendar Lines # 5
Case Name Mark Sivertsen vs Ford Motor Company et al
Case No. 24CV429470
Motion for Attorney's Fees

I. BACKGROUND

Before the court is Plaintiff's motion for attorney's fees, costs and enhancer based on a resolution of claim arising out of Plaintiff's 2020 Ford Ranger, vehicle identification number 1FTER4EH9LLA70293, which was brought under the Song-Beverly Consumer Warranty Act. (Plaintiff's Motion, p. 7). Plaintiffs asserts it is the prevailing party after a 998 Agreement was signed for a \$70,0000 in resolution of the case and attorney's fees, costs, and

expenses. (*Id.*). The motion was filed on September 9, 2025, the motion was accompanied with a proof of service indicating electronic service on that same day.

Defendant Ford Motor Company (“Ford”) opposes the motion on the grounds that the plaintiff cannot recover fees that are unreasonable and fails to meet its burden for establishing a basis for a fee enhancement.

On May 26, 2026, Plaintiff’s filed a Declaration of Angel Baker regarding an order to show cause regarding dismissal after settlement and confirmed that while damages are resolved, attorney’s fees are still at issue.

The Court has carefully reviewed the following: Plaintiff’s notice and memorandum of points and authorities (totaling 18 pages); Declaration of Payam Shahian in support of plaintiff’s motion and attached Exhibits 1-28 (totaling 272 pages); Declaration of Richard Kwak in support of plaintiff’s motion and attached Exhibits 1-3 (totaling 26 pages); proof of service (totaling 3 pages); Plaintiff’s request for judicial notice (totaling 7 pages); Exhibit list (totaling 4 pages); Defendant’s opposition (totaling 17 pages); and the pleadings.

II. LEGAL STANDARD

A. ATTORNEY’S FEES AND COST

Pursuant to Code of Civil Procedure section 1033.5(a)(1), a prevailing party is entitled to recover its attorney’s fees when authorized by contract, statute, or law. (*See also*, Civ. Code § 1717(a)). “A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney’s fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit.” (*Bowman v. City of Berkeley* (2005) 131 Cal.App.4th 173, 178).

In a lemon law action, costs and expenses, including attorney’s fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (Civ. Code, § 1794(d)). Section 1794 provides: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794).

Thus, the statute includes a “reasonable attorney’s fees” standard. The attorney bears the burden of proof as to “reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5(c)(5)). This burden requires competent evidence as to the nature and value of the services rendered. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559). “Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records.” (*Ibid.*).

B. CALCULATION FOR FEES

In determining a reasonable attorney fee, the trial court considers the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36). The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (*Ibid.*). “The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate

determinations in other cases.” (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437, citations omitted).

“Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (*Mikhaeilpoor v. BMW of N. Am., LLC* (2020) 48 Cal.App.5th 240, 247 [cleaned up]).

III. ANALYSIS

Plaintiff seeks attorney’s fees, cost, and an enhancer in total amount of \$20,444.78 based on a \$70,000.00 998 resolution of a claim under the Song-Beverly Consumer Warranty Act. (Plaintiff’s motion, p. 2). The breakdown of the total amount consists of the following: (1) \$12,552.50 in attorney’s fees based on 26.3 hours spent by nine attorneys and two law clerks; (2) a 1.35 multiplier enhancement on the attorney fees (or \$4,393.38); (3) \$1,498.90 in costs and expenses; and (4) an anticipated additional \$2,000.00 for Plaintiff’s counsel to review Defendant’s Opposition, draft the Reply, and attend the hearing on this Motion. (*Id.*). The plaintiff seeks judicial notice of 27 separate documents Exhibits 1-27 to establish various Song-Beverly cases. The court denies this request as it will not take the substance of the document for the truth of the matter and relevancy to the extent that the Court will engage in an individual assessment of the case at hand. However, the Court has reviewed the documents.

Defendant opposes the motion and states that after the plaintiff accepted the 998 offer on July 16, 2026, Plaintiff made no effort to meet-and-confer prior to filing this attorney’s fees motion and did not act in good faith. (Defendant’s opposition, p. 5). Accordingly, defense seeks to strike the 4.2 hours and \$1,533.00 in attorney’s fees incurred in preparing the motion. (*Id.*, at p. 11). Defendant asserts that Plaintiff’s law firm, Strategic Legal Practice seeks fees and a multiplier in a matter that is not unique, citing that discovery requests were filed similarly in hundreds of other case with only small factual difference such as the vehicle make, model, vehicle identification number, and purchase date. Thus, arguing that this matter did not present any novel or difficult issues; did not require skills that merit a multiplier as the case involved a template complaint, pro forma discovery, and boilerplate responses; did not preclude other employment by the attorneys; and that the contingent nature is part of its practice that is not unique to this case. (*Id.*, p. 5-6). Defense seeks a total reduction of \$8,582.66 based on the following: a 30% reduction for inflated rates on plaintiff’s’ fees for filing the motion and attending the hearing in the amount of \$3,000.00; 30% reduction for unreasonable time from nine timekeepers in the amount of \$3,765.75; costs in the amount of \$1,498.90; and 0.1 negative multiplier to the remaining fees and costs in the amount of \$1,318.01. (Defendant’s Opposition, p. 16).

A. ATTORNEY’S FEES

Plaintiff asserts that the 998 offer was obtained after one and half years of litigation, which required the diligent work of plaintiff’s counsel, that included research; drafting a complaint; reviewing defendant’s answer; propounding discovery; responding to written discovery; exchanging expert discovery; attending a case management conference, mediation status conference, trial setting conference; receiving a motion for summary judgment or summary adjudication motion and defense’s ex parte application to advance the hearing, receiving a demand for vehicle inspection and notice of deposition of the plaintiff, serving objections to the notice of deposition of the plaintiff and vehicle inspection; and evaluating a 998 offer that was ultimately accepted. (Plaintiff’s motion, p. 7-9; Declaration of Kwok at p. 3-4). Plaintiff rebuts any allegation that efforts were unnecessary and resulting fees unreasonable on

the grounds that plaintiff is entitled to prepare for trial. (*Id.*, at p. 8). Further, the plaintiff contends that “FMC’s [defendant Ford Motor Company’s] conduct forced Plaintiff to incur attorney’s fees, costs, and expenses.” (*Id.*, at p. 13). In regard to Defendant’s assertion that Plaintiff’s counsel overstuffed the case, Plaintiff contends that although nine attorneys and two law clerks were staffed on the case, only five attorneys and one law clerk (Richard Kwak, Edward Rodriguez, Breana Rucker, Nino Sanaia, Tyson Smith, and Sanam Vaziri) accounted for 17.3 hours and that tasks were not duplicative. (*Id.*).

Plaintiff sets forth the experience of SLP attorney’s (Declaration of Shahian, p. 6-16) and also sets forth a Laffey Matrix fees and argues that its fees are lower than attorney’s in this region. The attorney’s rates are submitted as follows:

Primary Case Team

Richard Kwak	1-3	\$510.84 (\$473 x 1.08)	\$365
Breana Rucker	1-3	\$510.84 (\$473 x 1.08)	\$395
Nino Sanaia	1-3	\$510.84 (\$473 x 1.08)	\$475
Tyson Smith	11-19	\$1,023.84 (\$948 x 1.08)	\$525
Sanam Vaziri	20+	\$1,232.28 (\$1141 x 1.08)	\$610

(*Id.*, at p. 16).

Timekeeper Summary

Name	Year	Hours	Rate
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Avelino, Olivia	2025	1.1	\$635.00
Carvalho, Tionna	2024	2.4	\$595.00
Carvalho, Tionna	2025	3.1	\$650.00
Kwak, Richard	2025	4.2	\$365.00
Lunn, David	2025	0.4	\$695.00
Mejia, Tara	2024	1.0	\$395.00
Rangel, Steve	2023	1.0	\$285.00
Rodriguez, Edward	2025	2.5	\$345.00
Rucker, Breana	2024	2.0	\$350.00
Rucker, Breana	2025	1.0	\$395.00
Sanaia, Nino	2025	3.1	\$475.00
Smith, Tyson	2024	3.0	\$525.00
Vaziri, Sanam	2024	1.5	\$610.00

(Exhibit 28, Declaration of Shahian, p. 269-272).

Defendant argues that the case settled at mediation after pro forma written discovery and that SLP cannot justify its high hourly rate, “exorbitant time” and staffing spent. (*Id.*, at p. 6). Defendant argues that the number of hours billed is unreasonable due to significant overlap and the basic nature of the case and cites that 11 billers ran up fees. (*Id.*, at p. 8-13). Defendant argues that Plaintiff’s request for attorney’s fees is unreasonably inflated, padded and layered with multiple timekeepers, boilerplate template work that did not require special skill, inefficient task allocation, and that the amount should not exceed more than \$11,862.12. (*Id.* at p. 6).

The Court has reviewed the briefing and specifically the time entries submitted, and the arguments presented in support of the hourly rates requested. The Court finds that discovery and information gathering regarding basic and template form interrogatories, special interrogatories, and request for production, set one is overcharged given the

basic nature of the case and reduces the following: 1 hour of work submitted by Breana Rucker in 2024 at the rate of \$350.00²; 1 hour of work from Tara Mejia in 2024 at the rate of \$395.00; and 1 hour of work from Tyson Smith at the rate of \$525.00 per hour in 2024. Further given the straightforward nature of the present motion and failure to meet-and-confer which would have accounted for time, the court reduces the fee motion drafting by 2.5 hours by Richard Kwon at the rate of \$365.00 in 2025.

The Court GRANTS attorney's fees in the amount of \$10,370.00.

B. COST

Plaintiff seeks \$1,498.90 in costs and expenses related to litigating and resolving this matter. (Exhibit 28 of Declaration of Shahian).

Defendant opposes the request for costs on the grounds that the plaintiff fails to meet its burden. Defense argues that plaintiff overstuffed the case and seeks unrecoverable fees and specific billing entries in Exhibit 28 demonstrates unreasonable and unreliable calculations. (Defendant's opposition, p. 13-14). Defense argues that the matter did not involve bespoke pleadings but rather were template non-novel theories similar to the hundreds of other cases that SLP handles. (*Id.*).

Upon review of the documents, the Court awards \$1,498.90 in costs and expenses.

C. MULTIPLIER

Plaintiff asserts that a 1.35 multiplier is warranted based on the following: (1) "This excellent result alone merits a multiplier enhancement," in reference to the \$70,000.00 recovery. (Plaintiff's motion, at p. 16); (2) the risks that non-recovery or delay was substantial. Plaintiff states that having taken the matter on a contingency basis, it assumed the risk of not getting paid at all or for several years. Thus, it seeks a 1.35 multiplier of \$4,393.38 to reflect the risk of non or delayed payment. (*Id.*) and; (3) Plaintiff argues that the delay of payment justifies a multiplier citing that the complaint was filed on January 18, 2024 and it has not been paid for nearly two years. (*Id.*).

Defendant asserts that a multiplier is not warranted based on the boilerplate nature of the case, straight forward and basic nature of the case that required no special skills, early resolution of the case after template written discovery was propounded, and bulk filing of similar cases. Defense seeks a 0.1 negative multiplier downward of any recoverable fees based on plaintiff's counsel failure to meet-and-confer and expend resources prior to filing this motion and act in good faith, as well as the fair market value of legal services that should be reduced.

Based on the straight forward basic nature of the case, lack of demonstration of unique work pointing to a novel or difficult issue, type of case handled by SLP in the Song-Beverly matter, and early resolution at mediation absent further discovery (after initial written discovery) and no depositions, or no opposition motion work, the Court does not find that the plaintiff has demonstrated that a multiplier is warranted in this matter. The Court DENIES Plaintiff's request for a multiplier.

The Court also DENIES defendant's request to impose a negative multiplier for Plaintiff's failure to meet-and-confer about attorney's fees prior to filing the motion.

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² The Court notes a discrepancy in the attorney's fees amount regarding Breana Rucker in 2024, on p. 272 the amounts in 2024 are listed as \$350.00 and increased to \$395.00 in 2025, however on p. 271 the rate for discovery and information gathering is listed as \$325.00. The sum of \$12,552.50 however amounts to \$350.00 rate so the Court applies that rate rather than the \$325.00 listed.

D. ESTIMATED COSTS

Plaintiff requested \$2,000.00 for anticipated time spent on preparing and submitting a reply brief and appearing for Court. However, the Court notes that no reply brief was filed by the plaintiff. Further, no appearance has yet been made and any appearance if made would not amount to that time on this straightforward motion. Plaintiff has not made a showing to prove this cost.

The defendant's oppose the \$2,000.00 for similar reasons to other fees and costs noted above.

The Court DENIES the anticipated \$2,000.00 that was estimated by the plaintiff.

IV. CONCLUSION

Based on the foregoing, the Court awards the plaintiff a total of 11,868.90 that consists of \$10,370.00. in attorney's fees and \$1,498.90.

The request for a 1.35 enhancer by the plaintiff is DENIED. The defendant's request for a negative 0.1 downward multiplier is DENIED. The request for anticipated cost of \$2,000.00 addressed above for a reply brief that was not filed is DENIED.

Moving party to prepare the formal Order.

Calendar Lines # 6

Case Name Agnieszka Ayotte et al vs Ford Motor Company et al

Case No. 24CV45386

Petition to Compel Arbitration

I. BACKGROUND

On July 9, 2017, Plaintiffs Agnieszka Ayotte and Adam Biernacki ("Plaintiffs") purchased a 2017 Ford Escape, VIN: 1FMCU0GD5HUC27081 ("Subject Vehicle") from Future Ford Lincoln of Roseville ("Defendant"). (Complaint at ¶ 7). Plaintiffs delivered the Subject Vehicle to Defendant for substantial repair on at least one occasion. (*Id.* at ¶ 46). Plaintiffs allege that Defendant "breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards." (*Id.* at ¶ 48). On December 12, 2024, Plaintiffs filed suit against Defendant and Ford Motor Company for violation of statutory obligations, namely the Song-Beverly Act. Plaintiffs bring the sole cause of action for negligent repair against Defendant Future Ford Lincoln of Roseville.

Defendant moves to compel arbitration of this action pursuant to the Retail Installment Sales Contract ("RISC"). Defendant argues the Arbitration Provision in the RISC is governed by the Federal Arbitration Act ("FAA") and California Arbitration Act ("CAA"). Defendant maintains it has not waived its right to arbitrate and no other grounds exist for revocation of the agreement. Having reviewed the language of the Arbitration Provision and the circumstances of its execution, the Court concludes that the motion should be granted.

II. LEGAL STANDARD

Defendant maintains that the FAA governs the Arbitration Provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp 6:24-7:1). The Arbitration Provision states "[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration." (Declaration of Trina Clayton ["Clayton Decl."], Ex.